

IN THE COURT OF APPEALS OF THE STATE OF WASHINGTON

DIVISION ONE

ZACKARIAH BENNETT,

Appellant,

vs.

MELVINA MANNING,

Respondent.

Case No.: 87007-6

APPELLANT'S COMBINED BRIEF

I. INTRODUCTION

Appellant, Zackariah Bennett, appeals the Superior Court's denial of his Motion for Reconsideration and the granting of Summary Judgment in favor of Respondent, Melvina Manning.

This appeal centers on:

1. The misapplication of res judicata and collateral estoppel, based on demonstrable misrepresentations regarding the scope and outcome of prior proceedings;

2. Procedural irregularities that violated Appellant's right to due process, including the court's failure to consider critical filings; and
3. A pattern of procedural misconduct by Respondent's counsel, Ms. Gass, which reflects a broader effort to disadvantage Appellant and obscure the merits of his claims.

These errors, taken individually and collectively, necessitate reversal of the Superior Court's rulings and remand for a fair hearing.

II. LEGAL STANDARDS

1. Res Judicata: Prevents relitigation of a cause of action that has been fully adjudicated by a competent court. (*Roberson v. Perez*, 156 Wn.2d 33, 43 (2005)).
2. Collateral Estoppel: Precludes relitigation of specific issues actually litigated and essential to the outcome of the first action. (*Hanson v. City of Snohomish*, 121 Wn.2d 552, 562 (1993)).
3. Procedural Fairness: Fundamental to due process is the right to respond to filings, ensure transparency, and present one's case without undue procedural disadvantage. (*Mathews v. Eldridge*, 424 U.S. 319 (1976)).

III. STATEMENT OF FACTS

1. Limitation of Prior Proceedings

During the DVPO hearing (Cause No. 22-2-09380-3), the court explicitly limited its scope to determining whether a protection order should be granted. The court stated:

"Anything that is beyond the scope of why we're here is not going to be something that I want you to focus on in your testimony."*

Appellant informed the court on record that his broader claims against Ms. Manning had been filed as a separate matter (Cause No. 23-2-11352-7). The DVPO court acknowledged this distinction and declined to adjudicate those issues.

2. Summary Judgment Hearing Misrepresentation

Despite being aware of the DVPO court's limitations, Respondent's counsel, Ms. Gass, asserted during the Summary Judgment hearing that all claims in the current case had already been adjudicated in the DVPO proceedings. This demonstrably false claim led to the Superior Court erroneously applying res judicata and collateral estoppel.

3. Procedural Anomalies

Respondent's proposed summary judgment order was emailed directly to the court's bailiff without being served on Appellant, depriving him of the opportunity to review or contest it. Additionally, the Superior Court failed to consider Appellant's Motion to Correct Misrepresentation, which identified critical factual disputes.

4. Post-DVPO Appellate Manipulation

Following the DVPO ruling, Ms. Gass represented Respondent during the appeal and petition to the Supreme Court. She filed her notice of appearance after Appellant's appellate brief had been submitted. Exploiting Appellant's failure to preemptively address mootness, she successfully secured a moot ruling, ensuring that Appellant's substantive arguments were not considered.

IV. ARGUMENT

A. Misapplication of Res Judicata and Collateral Estoppel

1. Limitation of Prior Proceedings:

The DVPO hearing explicitly limited its scope to determining whether a protection order was warranted. Broader issues raised by Appellant were excluded from consideration and refiled as a separate matter. As such, the claims in the current case could not have been litigated or resolved in the prior DVPO proceedings.

2. Misrepresentation by Respondent's Counsel:

Despite knowing that the DVPO court did not address Appellant's broader claims, Ms. Gass falsely asserted that these issues were already adjudicated. This misrepresentation misled the Superior Court into improperly applying *res judicata* and collateral estoppel, warranting reversal of the summary judgment.

B. Procedural Concerns and Lack of Due Process

1. Failure to Serve Proposed Order:

Respondent's counsel emailed the proposed summary judgment order directly to the court without serving it on Appellant. This procedural violation deprived Appellant of his right to review or contest the order, undermining transparency and fairness.

2. Ignored Motion to Correct Misrepresentation:

Appellant's motion raised material factual disputes regarding the scope and outcome of the DVPO proceedings. The Superior Court's failure to consider this motion violates precedent requiring courts to review all filings submitted before a final ruling (**Felsman v. Kessler**, 2 Wn. App. 493 (1970)).

The court mistakenly dismissed several claims for damages after adopting the defendant's erroneous notion that Mr. Bennett was attempting prosecution of Mrs. Manning for her actions. The initial complaint clearly states: "I am seeking relief for the damages of Mrs. Manning's outrageous and unrelenting actions." [cp at 4]

C. Pattern of Procedural Misconduct by Counsel

1. Tactical Manipulation of Appellate Process:

During the DVPO appeal, Ms. Gass delayed filing her notice of appearance until after Appellant's brief was submitted, depriving him of the opportunity to address potential mootness in his initial arguments. By securing a moot ruling, she ensured that Appellant's claims were dismissed without substantive review.

2. Conflict of Interest and Local Influence:

As the sole attorney in a small-town firm that handles all legal matters for the Mannings, Ms. Gass is deeply familiar with their history. Her procedural tactics reflect an effort to obscure the merits of Appellant's claims and protect her clients at the expense of procedural fairness.

Mrs. Manning used this same firm in 2008, after refusing to return Appellant's son as agreed, to defraud the court into the very judgement that is the root of ALL of the legal matters between Mr. Bennett & Mrs. Manning [cause# 08-3-03956-4], listed as claim#'s 3, 4, 5, & 7 on this matter [cp at 2-3].

Upon lengthy review of the filings, it is clearly evident that Mrs. Manning both mislead and brazenly defrauded the Court, and that her council (O.W. Hollowell & Asso.) was either complicit, or grossly negligent, from filing through final order.

V. REQUEST FOR RELIEF

For the reasons stated, Appellant respectfully requests that the Court of Appeals:

1. REVERSE the Order Granting Summary Judgment:

Reconsider the decision in light of the procedural fairness issues and misrepresentations identified.

2. REMAND the Case to the Superior Court:

Provide a full and fair hearing on the merits of Appellant's claims, ensuring transparency and procedural integrity in future proceedings.

3. ENSURE Judicial Accountability:

Address the failure to consider Appellant's filings and the procedural advantages granted to Respondent to restore confidence in the judiciary's impartiality.

VI. CONCLUSION

The procedural and substantive errors in this case have denied Appellant a fair opportunity to present his claims. Ms. Gass has unethically capitalized on Mr. Bennett's inability to retain counsel; using deception, false statements, stonewalling discovery, refusing to correct the record when confronted with direct evidence of clear errors and false statements within her filings.

Appellant respectfully urges this Court to reverse the summary judgment ruling and remand for a fair hearing.

DATED this 22nd day of November, 2024.

Respectfully submitted,

Zackariah Bennett

A handwritten signature in black ink, appearing to read 'Zackariah Bennett', written over a horizontal line.

Appellant Pro Se